

FILE NO.

CROSS EASEMENT AND SERVITUDE AGREEMENT

03-060864

2003 NOV 13 PM 1:07

THIS CROSS EASEMENT AND SERVITUDE AGREEMENT (the "Agreement"), is made and entered into as of the 31st day of October, 2003 (the "Effective Date"), by and between BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company ("Belle"), and ELAINE LOUVIERE MANN, an individual of full age of majority and a resident of Lafayette Parish, Louisiana ("Mann").

RECITALS

Belle is the owner of certain property located in Lafayette Parish, Louisiana, said property being more particularly described in Exhibit A attached hereto and made a part hereof (the "Belle Property").

Mann is the owner of that certain property located in Lafayette Parish, Louisiana, said property being more fully described in Exhibit B attached hereto and made a part hereof (the "Mann Property").

The parties desire that Mann grant a non-exclusive easement and servitude to Belle over certain portions of the Mann Property, and that Belle grant a non-exclusive easement and servitude to Mann over certain portions of the Belle Property, all as more particularly described below.

Agreements.

NOW, THEREFORE, in consideration of the mutual agreements contained herein, Belle and Mann each agree and covenant, as follows:

1. Grant of Easement to Belle. Mann does hereby grant and convey to Belle, and Belle's tenants, lessees, customers, guests, employees and invitees, a non-exclusive easement and servitude over, upon and across the Mann Property more particularly described in Exhibit B (the "Mann Servitude Area"), for the purposes of (i) parking of light passenger vehicles, and (ii) ingress and egress for such vehicle and pedestrian passage associated with such parking. This easement and servitude shall have a term of fifty (50) years, commencing from the Effective Date; provided, however, at any time after the third (3rd) anniversary date of this servitude and easement, Mann may terminate this easement and servitude by providing sixty (60) days written notice to Belle.

2. Grant of Easement to Mann. Belle does hereby grant and convey to Mann, and Mann's tenants, lessees, customers, guests, employees and invitees, a non-exclusive easement and servitude over, upon and across those portions of the Belle Property identified Parking Easement Area and shaded in yellow on Exhibit A-1 (the "Belle Servitude Area"), for the purposes of (i) parking of light passenger vehicles, and (ii) ingress and egress for such vehicle and pedestrian passage associated with such parking. This easement and servitude shall have a term of fifty (50) years, commencing

from the Effective Date; provided, however, at any time after the third (3rd) anniversary date of this servitude and easement, Belle may terminate this easement and servitude by providing sixty (60) days written notice to Mann.

3. Existing Rights. The easements and servitudes granted herein are subject to all leases, easements, servitudes and other rights affecting the Mann Servitude Area or the Belle Servitude Area of record in the office of the Clerk of Court for Lafayette Parish, Louisiana.

4. Non-Exclusive. The parties acknowledge that the easements and servitudes granted herein are non-exclusive. Without limiting the generality of the foregoing, the parties acknowledge that each party, and each party's respective successors, assigns, tenants, lessees, customers, guests, employees and invitees shall continue to have the right to use such party's respective property and the easement area located thereon.

5. Maintenance of Easement Areas. Each party agrees to maintain its respective easement area in good order and repair and keep such areas free from obstruction, trash and debris. Each party shall be solely responsible for the cost of maintenance and repair to its respective easement area.

6. Enforcement. Either party may enforce the terms of this Agreement by action in the nature of specific performance, injunctive relief, or damages. In the event of the failure of any party to abide by the terms and provisions of this Agreement and, in the event the other party is required to enforce its rights under this Agreement, then the successful party shall be entitled to all reasonable attorney fees and court costs in connection therewith.

7. Insurance. Each party shall maintain comprehensive general liability insurance, insuring against damage to person and property, on its respective property; and, each party shall name the other party as an additional insured on such policy(ies) of insurance.

8. Notices. All notices to be given pursuant to this Agreement shall be in writing and shall be deemed given (a) when delivered in person, (b) when received if given by nationally recognized overnight courier service, or (c) three (3) business days after being deposited in the United States mail, postage prepaid, registered or certified mail, addressed to the applicable party as follows:

If to Mann:

Ms. Elaine Louviere Mann
305 Whitcomb Street
Lafayette, Louisiana 70503

If to Belle:

Belle Realty of Lafayette, L.L.C.
Attn: Edward E. Abdalla, IV
101 Arnould Boulevard
Lafayette, Louisiana 70506

With a copy to:

Richard L. Becker, Esq.
Becker & Associates
910 Harding Street
Lafayette, Louisiana 70503

9. Headings. Headings in this Agreement are for convenience only and shall not be used to interpret or construe its provisions.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES]

STATE OF LOUISIANA
PARISH OF LAFAYETTE

THUS DONE AND PASSED, in my office at Lafayette, Louisiana on the date set forth hereinabove, in the presence of the undersigned competent witnesses, who hereunto sign their names with the appearer and me, Notary, after reading of the whole.

WITNESSES:

Linda G. Landry
Printed Name: LINDA G. LANDRY

Cathi Landry
Printed Name: Cathi Landry

BELLE REALTY OF LAFAYETTE,
L.L.C.,

By:

Edward E. Abdalla IV

Mr. Edward E. Abdalla, IV
Managing Member

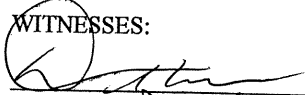
Reinold L. B...

Notary Public, in and for
LAFAYETTE Parish, Louisiana
My commission expires: AT DEATH

STATE OF LOUISIANA
PARISH OF LAFAYETTE

THUS DONE AND PASSED, in my office at Lafayette, Louisiana on the date set forth hereinabove, in the presence of the undersigned competent witnesses, who hereunto sign their names with the appearer and me, Notary, after reading of the whole.

WITNESSES:


Printed Name: David Mann


Printed Name: Richard Gaudy


ELAINE LOUVIERE MANN

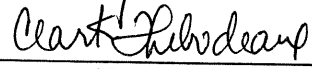

Notary Public, in and for
Lafayette Parish, Louisiana
My commission expires: at death

EXHIBIT A

"Belle Property"

That certain tract or parcel of land being known and designated as Lot 7, Block M, Arnould Heights Subdivision, Extension No. 1, Lafayette, Louisiana according to that plat dated December 29, 1952, entitled, "MAP Showing Arnould Heights Subdivision Extensions 1, 2, 3" prepared by Fred L. Colomb and recorded under Entry Number 286167 in the records of the Clerk of Court of Lafayette Parish, Louisiana.

EXHIBIT A-1

"Belle Servitude Area"



Block "M"

PARKING EASEMENT AREA

Armand Hts. Subd. Ext. No. 1

Notes:

- Property shown is subject to all easements.
- Survey made by [Name] for [Company]

Lots and Owners:

- Shell Oil Co., 3.160 Ac.
- William S. Hecht, 1.982 Ac.
- Bonyea's, 1.709 Ac.
- Fulton Connection, 1.709 Ac.
- Purple Cattle, 1.709 Ac.
- Montez Goods, 1.709 Ac.
- Kallio & Sons, 1.709 Ac.
- Holly & Sons, 1.709 Ac.
- McDonald & Co., 1.709 Ac.
- Caroline & Co., 1.709 Ac.
- Lumpkin & Co., 1.709 Ac.
- Liberalism, 1.709 Ac.
- Monahan, 1.709 Ac.
- Booth & Co., 1.709 Ac.
- Booth & Co., 1.709 Ac.
- Booth & Co., 1.709 Ac.

EXHIBIT B

**"MANN Property"
"MANN Servitude Area"**

Those certain tracts or parcels of land being known and designated as Lot 6 and Lot 7, Block M, Pierret Subdivision, Lafayette, Louisiana according to that plat dated December 4, 1952, entitled, "MAP Showing Pierret Subdivision" prepared by Fred L. Colomb and recorded under Entry Number 286146 in the records of the Clerk of Court of Lafayette Parish, Louisiana.